JUSTICE ALITO delivered the opinion of the Court.

For years, the State of Hawaii made it almost impossible to obtain a license to carry a firearm. Four years ago, how-

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Gentner F. Drummond of Oklahoma, *Alan Wilson* of South Carolina, *Marty J. Jackley* of South Dakota, *Jonathan Skrmetti* of Tennessee, *Ken Paxton* of Texas, *Derek Brown* of Utah, *John B. McCuskey* of West Virginia, and *Keith G. Kautz* of Wyoming; for the Association of New Jersey Rifle & Pistol Clubs, Inc., et al. by *Daniel L. Schmutter*; for The Buckeye Institute by *David C. Tryon*; for the California Gun Rights Foundation et al. by *Bradley A. Benbrook* and *Stephen M. Duvernay*; for the Claremont Institute's Center for Constitutional Jurisprudence by *John C. Eastman* and *Alexander Haberbush*; for the Firearms Policy Coalition by *David H. Thompson*, *Peter A. Patterson*, *William V. Bergstrom*, and *Cody J. Wisniewski*; for Gun Owners of America et al. by *Robert J. Olson*, *William J. Olson*, *Jeremiah L. Morgan*, *John I. Harris III*, and *Mike Boos*; for the Liberty Justice Center by *Ryan Morrison*; for the National African American Gun Association, Inc., by *Stephen P. Halbrook*; for the National Association for Gun Rights by *Barry K. Arrington*; for the National Shooting Sports Foundation by *Erin E. Murphy*, *Matthew D. Rowen*, *Lawrence G. Keane*, and *Shelby Baird Smith*; for the Peace Officers Research Association of California et al. by *David E. Mastagni*, *Timothy K. Talbot*, and *Michael A. Morguess*; for the Sportsmen's Alliance Foundation by *Michael T. Jean*; and for Clayton Cramer et al. by *C. D. Michel*, *Anna M. Barvir*, and *Donald Kilmer*.

Briefs of *amici curiae* urging affirmance were filed for the District of Columbia et al. by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, and *Perry R. Cao*, Assistant Attorney General, by *Kwame Raoul*, Attorney General of Illinois, *Jane Elinor Notz*, Solicitor General, *Sarah A. Hunger*, Deputy Solicitor General, and *Brianna Yang*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Aaron M. Frey* of Maine, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Letitia James* of New York, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for the City of Baltimore et al. by *Paul R. Q. Wolfson*, *Anna L. Deffebach*, and *Alethea Anne Swift*; for the Brady Center to Prevent Gun Violence et al. by *Daniel A. Rubens*, *Thomas M. Bondy*,

ever, this Court held in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022), that the Second and Fourteenth Amendments protect the right to carry handguns outside the home for self-defense. Hawaii responded by replacing its old law on carry permits with new laws that achieved a similar result. On a large portion of the land within the State's boundaries, possession of a firearm is now flatly prohibited. And the law now before us severely burdens the ability to carry a firearm in much of the rest of the State by prohibiting firearms on private property without the express and affirmative consent of the property owner.

This law departs sharply from the standard common-law rule on access to private property held open to the public. Under that rule, *everyone*, including those lawfully carrying firearms, may enter unless expressly prohibited from doing so. By contrast, under the new Hawaii law, *no one* carrying a firearm may enter without the property owner's express authorization. The effect of this new rule is to impose severe restrictions on the daily activities of residents who have satisfied the State's rigorous requirements for the issuance of a carry permit. When these permit holders leave home in the morning, not only must they take care to avoid all the territory where the possession of a gun is prohibited outright, but they may also be barred from entering many places that people routinely visit in the course of their daily

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Melanie R. Hallums, Douglas N. Letter, Shira Lauren Feldman, and *J. Adam Skaggs*; for Everytown for Gun Safety by *Kathleen R. Hartnett, Raymond P. Tolentino, Anna O. Mohan, Eric A. Tirschwell, Janet Carter, William J. Taylor, Jr.*, and *Priyanka Gupta Sen*; for Professors of Property Law by *Ryan Chabot* and *Alan E. Schoenfeld*; for Prosecutors Against Gun Violence by *Steven C. Wu*; and for Claire Priest et al. by *Timothy C. Hester* and *Hassan Ahmad*.

Briefs of *amici curiae* were filed for the Foundation for Moral Law by *John A. Eidsmoe*; for Global Action on Gun Violence by *Christopher Cole, Jonathan E. Lowy*, and *Yaacov Meiseles*; for the Second Amendment Foundation et al. by *Konstadinos T. Moros*; and for Patrick J. Charles by *Patrick J. Fuster*.

routines, such as gas stations, convenience stores, restaurants, coffee shops, drug stores, grocery stores, "big box" stores, home improvement stores, barber shops or hair salons, dry cleaners, and laundromats.

This regime hobbles what the Second Amendment protects: the right of Americans to carry arms for self-defense as they go about their daily lives. We hold that the law is unconstitutional.

I

When Hawaii adopted the law now before us, it did so against the backdrop of this Court's Second Amendment decisions, and many of the arguments that the State[1] now advances were addressed in those decisions. We therefore begin with an overview of that body of law.

A

1

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The Second Amendment provides: "A well regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed." For more than two centuries after the ratification of the Second Amendment, this Court had few occasions to examine its meaning. Such an occasion arose in *District of Columbia* v. *Heller*, 554 U. S. 570 (2008).

The case was brought by Dick Heller, a resident of the District of Columbia whose story highlighted the reason why the right to keep and bear arms for self-defense was included in the Bill of Rights. *Id.*, at 575. In light of the exceptionally high rate of violent crime in Washington, D. C.,[2] Heller wanted to keep a firearm in his home to defend himself in

[1] For simplicity, we refer to respondent as "the State."

[2] See, *e. g.*, Brief for Buckeye Firearms Foundation et al. as *Amici Curiae* 8–11, Brief for Criminologists et al. as *Amici Curiae* 6–17, and Brief for Academics as *Amicus Curiae* 5–17, in *District of Columbia* v. *Heller*, O. T. 2007, No. 07–290.

case of a burglary or home invasion. *Id.*, at 575–576. He had all the hallmarks of a citizen who would handle a firearm safely and responsibly. He was a special D. C. police officer who provided security at the Thurgood Marshall Judiciary Building and was authorized under D. C. law to carry a handgun while on duty. *Ibid.* But the District, which made it virtually impossible for a resident to keep a handgun at home for self-defense, denied his application for a permit. *Ibid.* Unwilling to accept this plight, Heller sued in federal court to vindicate his Second Amendment right. *Ibid.*

When his case reached this Court, we provided our first thorough exploration of the Second Amendment's meaning. We rejected the argument that the Second Amendment right extends only to members of a state militia and held instead that the Second Amendment, like other provisions of the Bill of Rights, protects an individual right enjoyed by "'the people.'" *Id.*, at 579–581. Our opinion went on to explain the meaning of the Second Amendment's other key terms. The phrase "to keep and bear Arms," we held, signifies what its terms mean in ordinary usage—that is, to "have" and "carry Arms." *Id.*, at 583–585. And "Arms," we explained, refers to implements used for offense or defense. *Id.*, at 581. We added that handguns, which are "overwhelmingly chosen by American society" for self-defense, fall squarely into this category. *Id.*, at 628.

Page Proof Pending Publication

We also identified the Amendment's "central" concern: securing the fundamental right of self-defense. *Id.*, at 577, 581, 599, 628, 635. In late 18th century America, the need for firearms for self-defense was acute. There were no police forces, and most Americans lived in rural areas, often in homes located miles from the closest neighbor.[3] If these homes were attacked, the residents were on their own, and their survival might well depend on the availability of a firearm to ward off assailants. In light of this reality, it is not surprising that

[3] See, *e. g.*, C. Cramer, Armed in America: The Remarkable Story of How and Why Guns Became as American as Apple Pie 3 (2006).

the right to keep and bear arms was included among the other treasured liberties protected by the Bill of Rights.[4]

But while the founding generation cherished the Second Amendment right, they did not think it was absolute. *Heller* explained—and later cases have reiterated—that the Second Amendment "codified a *pre-existing* right." *Id.*, at 592. And this right, as understood at the time, was not an "unlimited" right "to keep and carry any weapon whatsoever in any manner whatsoever and for whatever purpose." *Id.*, at 592, 626. Similarly, *Heller* warned that "nothing in our opinion should be taken to cast doubt on longstanding prohibitions on the possession of firearms by felons and the mentally ill, or laws forbidding the carrying of firearms in sensitive places such as schools and government buildings." *Id.*, at 626; see also *McDonald* v. *Chicago*, 561 U. S. 742, 786 (2010) (opinion of ALITO, J.); *United States* v. *Rahimi*, 602 U. S. 680, 699 (2024).

2

Page Proof Pending Publication

Because the Second Amendment protects a right that already existed when the Amendment was adopted, *Heller* instructed courts to ascertain the scope of the right by looking to history. And to emphasize the point, *Heller* emphatically rejected the ahistorical and "judge-empowering 'interest-balancing inquiry' " suggested in the dissent. 554 U. S., at 634. *Heller* acknowledged that the history-based analysis it prescribed would not always be easy, but it found that mode of analysis necessary to prevent judges from balancing away the right that the Second Amendment was adopted to protect, *id.*, at 635—which is precisely what the dissent did.[5]

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[4] As *Heller* noted, most Americans in the late 18th century also "undoubtedly thought" that the codified Second Amendment was "important for . . . hunting," 554 U. S., at 599, which, particularly for those moving west, was an important source of sustenance.

[5] That dissent assumed for the sake of argument that the Second Amendment protects a private citizen's right to keep a firearm in the home for self-defense, but then concluded that D. C. law, which made it virtually

B

Heller concerned an ordinance adopted by the District of Columbia, and therefore the decision did not govern the States. But since virtually all the provisions of the Bill of Rights had been held to apply equally to the Federal Government and the States, it was inevitable that the Court would have to decide whether the Second Amendment right merited similar treatment. Two years after *Heller*, that question came before us in *McDonald*.

The case was brought by residents of Chicago, a city, like Washington, D. C., with a high rate of violent crime.[6] The lead plaintiff, Otis McDonald, was a man in his late seventies who lived in a dangerous neighborhood and had been subjected to violent threats from drug dealers. *McDonald*, 561 U. S., at 751. A city ordinance effectively barred McDonald and the other plaintiffs from possessing guns in their homes for self-defense, and they contended that the fundamental right recognized in *Heller* should apply throughout the country. 561 U. S., at 752–753.

Page Proof Pending Publication

The city of Chicago opposed nationwide application of *Heller*, arguing that law enforcement needs and public attitudes about guns varied from State to State and city to city and that States and cities should have leeway to regulate gun possession as their lawmakers saw fit. See Brief for Respondent in *McDonald* v. *Chicago*, O. T. 2009, No. 08–1521, pp. 24–31. The Court, however, disagreed. The plurality opinion, joined by four Justices, concluded that the Second Amendment right, like nearly all the rights protected by the First, Fourth, Fifth, Sixth, and Eighth Amendments, should

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impossible to have a gun for that purpose, was nevertheless constitutional because it was adequately tailored to serve the District's interest in protecting public safety. See *Heller*, 554 U. S., at 692–693 (opinion of Breyer, J.).

[6] See Brief for Heartland Institute as *Amicus Curiae* 6–10, and Brief for Buckeye Firearms Foundation et al. as *Amici Curiae* 8–15, in *McDonald* v. *Chicago*, O. T. 2008, No. 08–1521.

apply equally to the Federal Government and the States. *McDonald*, 561 U. S., at 750. Following a body of precedent dating back more than a century, the plurality concluded that the provision of the Fourteenth Amendment that did this work was the Due Process Clause. *Id.*, at 767–787. JUSTICE THOMAS, who provided the decisive fifth vote, reached a similar result based on the Fourteenth Amendment's Privileges or Immunities Clause. *Id.*, at 805–806 (opinion concurring in part and concurring in judgment). But either way, *McDonald* settled the question whether the Second Amendment embodies a uniform national standard or one that varies from one locale to another.

C

After *McDonald*, 12 years elapsed before the Court's next major Second Amendment decision: *Bruen*. In the interim, lower courts rejected nearly all Second Amendment claims based on reasoning that resembled that in Justice Breyer's *Heller* dissent. See *Bruen*, 597 U. S., at 18–19, 26.

Page Proof Pending Publication

In *Bruen*, we considered one such decision, which upheld a New York law that severely restricted the right to carry a handgun outside the home for self-defense. In doing so, we fleshed out the process of historical analysis required in a Second Amendment case. See *id.*, at 10.

That analysis, we held, involves two steps. First, a court must determine whether the law before it clashes with the "plain text" of the Amendment's language. *Id.*, at 24. This inquiry entails three subsidiary questions. First, does the law apply to "the people"—which is to say, to "all members of the political community"? *Heller*, 554 U. S., at 580. Second, does it concern any form of "Arms," *i. e.*, any weapon customarily used for offensive or defensive purposes? See *id.*, at 584. Third, does the law place any restrictions on either the "keep[ing]" (*i. e.*, possession) or the "bear[ing]" (*i. e.*, carrying) of arms? See *Bruen*, 597 U. S., at 32–33.

If a challenged law falls within the plain text of the Second Amendment, it is presumptively unconstitutional, *id.*, at 24—which means that it *may* violate the preexisting right that the Amendment codified. But because that right was not in every way coterminous with the Amendment's literal language, further analysis may be needed. Specifically, the relevant government—federal, state, or local—may be able to show that its challenged law did not infringe the historical understanding of the codified right. See *ibid.*

A variety of sources, including scholarship, may aid this inquiry. See *id.*, at 34–60. But often, the best evidence may be what *Bruen* called historical analogues. *Id.*, at 28. These are old legal rules from which a court may draw a strong inference that the modern law at issue is consistent with the codified right. A party defending against a Second Amendment claim may rely on a single analogue or a group of analogues. *Bruen* identified three important inquiries that courts should undertake in evaluating proffered analogues. The first is the number of jurisdictions in which they were adopted. See *id.*, at 67 ("[W]e will not stake our interpretation . . . upon a law in effect in a single State, or a single city" (citing *Heller*, 554 U. S., at 632)). The second is the extent to which they were well-accepted. This acceptance may be express, as when judicial decisions explicitly acknowledged the rule's legality. Or the acceptance may be tacit, as when a restriction on the keeping or carrying of arms was "open, widespread, and unchallenged." *Bruen*, 597 U. S., at 36 (internal quotation marks omitted).

Page Proof Pending Publication

The third is whether any analogue or collection of analogues is "relevantly similar" to the modern law. *Id.*, at 29. Determining whether this condition is met requires consideration of "how" the analogue restricted the keeping or bearing of arms—that is, whether it imposed a restriction similar to that imposed by the challenged law. *Ibid.* And a court must also consider "why" the analogue restricted the keeping or bearing of arms—that is, whether its rationale was similar to that of the new law. *Ibid.* In order to be suffi-

ciently similar to the modern law being challenged, a putative analogue need not be a "dead ringer" or "historical *twin*." *Id.*, at 30. Particularly when the modern law addresses a situation that could not have arisen when the Second or Fourteenth Amendment was adopted, it is too much to demand such a close match. But the "how" and "why" of the historical analogue and modern regulation must be close enough to enable a court to say: "Because this historical law was understood to be compatible with the right codified by the Second Amendment, we can infer that the restriction imposed by the modern law is likewise consistent with that right." Making this determination is far more disciplined than the "interest-balancing," "judge-empowering" standard that *Heller* emphatically rejected, but it is not mechanical. *Bruen*, 597 U. S., at 22 (quoting *Heller*, 554 U. S., at 634; internal quotation marks omitted). It undeniably necessitates an exercise of judgment.

Applying this framework, *Bruen* held that the challenged New York law, which broadly prohibited law-abiding citizens from carrying commonly used firearms in public for self-defense, violated the Second and Fourteenth Amendments. 597 U. S., at 38. We found that the State's proffered analogues were critically different from the challenged law and that the "overwhelming weight" of historical evidence supported the "right of the public to peaceably carry handguns for self-defense." *Id.*, at 62, 66.

Page Proof Pending Publication

In addition to holding that New York's law violated the Second Amendment, we pointed out that six other jurisdictions had adopted statutory provisions like New York's. See *id.*, at 15, n. 2. One of those jurisdictions was Hawaii.[7]

D

In *Bruen*, the law at issue concerned conduct that could have occurred when the Second and Fourteenth Amend-

[7] The other five were California, the District of Columbia, Maryland, Massachusetts, and New Jersey. *Bruen*, 597 U. S., at 15, n. 2.

ments were adopted—carrying a handgun outside the home for self-defense. By contrast, in our most recent Second Amendment case, *United States* v. *Rahimi*, 602 U. S. 680, the law in question, 18 U. S. C. § 922(g)(8), involved conduct that was distinctively modern: the possession of a firearm by a person against whom a domestic violence restraining order had been issued, see *Rahimi*, 602 U. S., at 684–685. Accordingly, application of step two of the *Bruen* framework called for a more difficult exercise of judgment. In the end, however, the majority was satisfied that the two analogues identified by the Federal Government, though not "dead ringers" of § 922(g)(8), were sufficiently similar to support the provision's constitutionality because the challenged regulation was "consistent with the principles that underpin our regulatory tradition." *Rahimi*, 602 U. S., at 692, 698–699.

The dissent applied the same test but came to the opposite conclusion, see *id.*, at 747 (opinion of THOMAS, J.), exhibiting how *Heller*'s history-based methodology—true to the warning contained in that ground-breaking decision—is not mechanical, see 554 U. S., at 626–628, 635.

Page Proof Pending Publication

II

A

With this background in mind, we turn to the Hawaii law challenged in this case. Before *Bruen*, Hawaii issued firearms carry licenses only in "exceptional case[s]." Haw. Rev. Stat. §§ 134–2 (Cum. Supp. 2018), 134–9(a) (2011). Indeed, it appears that from 2000 to 2018, only four such licenses were issued. See *Young* v. *Hawaii*, 896 F. 3d 1044, 1071, n. 21 (CA9 2018), reh'g en banc, 992 F. 3d 765 (2021), cert. granted, judgt. vacated, 597 U. S. 916 (2022). After *Bruen*, Hawaii and four of the other five States called out by our decision adopted a new method of restricting law-abiding citizens from carrying firearms for self-defense by flipping the default rule on private property open to the public.

At common law, opening up private property to the general public implies a "license to all persons to enter," meaning that "no person is a trespasser by merely entering therein" unless the property owner has given "due notice" that such a person is banned. *Commonwealth* v. *Power*, 48 Mass. 596, 602 (1844); see also, *e. g.*, *State* v. *Steele*, 106 N. C. 766, 780–783, 11 S. E. 478, 484–485 (1890); *Barney* v. *Oyster Bay & Huntington Steamboat Co.*, 67 N. Y. 301, 302–303 (1876); *Jencks* v. *Coleman*, 13 F. Cas. 442, 443–444 (No. 7,258), (CC RI 1835) (Story, J.).

After *Bruen*, Hawaii and four other States singled out in that decision flipped this default rule. Rather than allowing *all* to enter private property open to the public unless specifically prohibited, these new laws provided that *no one* carrying a firearm may enter without express authorization. See Cal. Penal Code Ann. §26230(a)(26) (West Supp. 2026); Haw. Rev. Stat. §134–9.5(a) (2023); Md. Crim. Law Code Ann. §6–411(d) (Supp. 2025); N. J. Stat. Ann. §2C:58–4.6(a)(24) (West 2024); N. Y. Penal Law Ann. §265.01–d(1) (West 2025).

Page Proof Pending Publication

B

Hawaii's new default rule is part of a tight web of laws that severely restricts the carrying of firearms for self-defense. To start, carrying a handgun for self-defense requires a special license, and obtaining that license is a rigorous process. Haw. Rev. Stat. §134–9. Applicants must first complete a detailed application that requires the disclosure of medical information. §134–9(g).[8] They must then suc-

[8] See Hawai'i Police Dept., Firearm Servs., https://www.hawaiipolice.gov/services/firearm-services/#license-to-carry (archived at https://perma.cc/A4G8-AEYB); License to Carry (Concealed and Unconcealed) Application Processing, https://www.hawaiipolice.gov/wpcontent/uploads/PM-12.3-License-to-Carry-Concealed-and-Unconcealed-Application.pdf (archived at https://perma.cc/MX8Z-3DMC); Authorization for Use or Disclosure of Protected Health Information (PHI), https://www.hawaiipolice.gov/wp-

cessfully complete an extensive training course in which they demonstrate competency in firearm safety and live-fire shooting, as well as an understanding of the law and available mental-health resources. §§ 134–9(d), (e). And they must demonstrate the "essential character or temperament necessary to be entrusted with a firearm." § 134–9(h).

But even for those who fulfill these stringent requirements, Hawaii imposes two additional restrictions on carrying firearms. The first bans the possession of a firearm in significant categories of places: "[a]ny [state-owned] building" or "adjacent grounds and parking areas"; "[a]ny public or private hospital" or "other place at which medical or health services are customarily provided"; any "restaurant serving alcohol"; any "stadium, movie theater, or concert hall"; any "public library property"; "any public or private" college or university; "any public school, charter school," or private school; any "beach, playground," or park; "any bank or financial institution"; any "amusement park, aquarium, carnival, circus, fair, museum, water park, or zoo"; and any "public gathering, public assembly, or special event conducted on property open to the public." § 134–9.1(a).[9] Some of these places are owned by the State, but many of the categories include privately owned property. So even if the owner of such a place wanted to admit individuals who are carrying a gun for self-defense, the owner could not do so.

Page Proof Pending Publication

The second restriction—the one at issue in this case—generally prohibits licensed individuals from carrying a firearm, even if unloaded or inoperable, "on private property of

content/uploads/Authorization-for-Use-or-Disclosure-of-PHI.pdf (archived at https://perma.cc/H7AL-C8ED).

[9] In the decision below, six judges stated that "Hawaii's law prohibits, presumptively or outright, the carrying of a handgun on 96.4% of the publicly accessible land in Maui County." 125 F. 4th 1230, 1233 (CA9 2025) (VanDyke, J., dissenting from denial of reh'g en banc). The State challenges this figure, arguing that it includes "sensitive-place" restrictions, such as those for public parks, beaches, and schools. Brief for Respondent 41.

another." § 134–9.5(a). Certain categories of individuals, such as police officers, are exempt, §§ 134–9.5(d), 134–11(a), but the ban otherwise applies unless "express authorization" has been given "by the owner, lessee, operator, or manager of the property," § 134–9.5(a). Such authorization must take one of two forms: "clear and conspicuous signage" that confers such consent or "[u]nambiguous written or verbal authorization" to carry a firearm on the premises from "the owner, lessee, operator, or manager of the property" or an agent of such a person. § 134–9.5(b).

III

Petitioners—three residents of Maui County who possess concealed-carry permits and an organizational plaintiff with members who have such permits—contend that these restrictions violate their rights under the U. S. Constitution, and they filed suit in federal court, seeking both temporary and permanent injunctive relief. The District Court declined such relief with respect to private property that is *closed* to the public, but it enjoined enforcement of the new default rule as applied to private property that is *open* to the public.

Page Proof Pending Publication

A panel of the Ninth Circuit reversed that injunction, and the full Ninth Circuit denied rehearing en banc. Judge VanDyke, joined by five other judges, issued an opinion dissenting from the denial of rehearing en banc. 125 F. 4th 1230, 1231 (2025). Judge Collins, joined by Judge Bress, likewise filed a dissent. *Ibid.* We granted certiorari to decide whether Hawaii may prohibit licensed concealed-carry permit holders from carrying handguns on private property open to the public unless the property owner gives express permission. 606 U. S. 1066 (2025).

IV

A

As with any Second Amendment challenge, we began by asking whether the restrictions imposed by the challenged

law fall within the plain text of the Second Amendment, see *Bruen*, 597 U. S., at 17, and we find that this requirement is easily met.

No party disputes that petitioners are among "the people" protected by the Second Amendment or that they seek to "bear," *i. e.*, to carry, "arms." Therefore, "the plain text of the Second Amendment protects" what petitioners want to do: carry handguns for self-defense. *Id.*, at 32.

Petitioners and the United States argue that the new default rule was enacted to undermine our decision in *Bruen*, but whatever the purpose of the new law, the shift from the old common-law rule unquestionably imposed a new and significant burden on the exercise of the right that this Court recognized in *Bruen*. To be sure, owners of establishments that are open to the public can admit or exclude persons who are carrying guns for self-defense under either the common-law rule or Hawaii's substitute. As a practical matter, however, the choice between these two default rules is often outcome-determinative with respect to Hawaiians' Second Amendment rights. For establishments where the owner either pays no attention or does not care about such issues, the choice of default rule will determine where carry-permit holders may lawfully carry firearms.

Page Proof Pending Publication

More broadly, Hawaii's new default rule burdens those wishing to exercise their Second Amendment right. Some proprietors who do not themselves object to entry by carry-permit holders may be reluctant to post a sign welcoming such individuals for fear of alienating other customers. So under Hawaii's new default rule, a proprietor in this category may only be willing to consent discreetly to the entry of permit holders who make the effort to inquire. This arrangement imposes a new burden on permit holders who will have to somehow obtain permission to carry a firearm on the property before stepping foot on it.

To see what Hawaii's new default rule means in practice, consider its impact on a resident of Hawaii whose situation

is like that of Jaime Caetano, a young Boston woman who wanted to carry a weapon to defend herself from a violent ex-boyfriend but was criminally prosecuted when she used a non-lethal weapon to fend him off. See *Caetano* v. *Massachusetts*, 577 U. S. 411, 412–413 (2016) (ALITO, J., concurring in judgment). Suppose our hypothetical young woman, after clearing all the hurdles needed to get a Hawaiian carry permit, leaves her home on a weekday morning and carries a handgun on her person or in a purse. On the way to work, she intends to fill up her car at a gas station. During her lunch break, she plans to walk to a fast-food restaurant and then buy some items at a large drug store. After work, she wants to pick up clothes at a dry cleaner and then shop for groceries. Unless each of these establishments has posted a sign saying "Guns Welcome" or something to that effect, each visit could expose her to criminal liability.

Imagine what our hypothetical young woman will have to do when she drives to the supermarket after work. When she arrives, she will violate the literal terms of the Hawaii law merely by pulling into the parking lot while having her handgun concealed on her person. She can minimize the length of her violation by disarming as soon as she arrives. But in removing the handgun from her person, she must take care not to let anyone see it for even a moment. Otherwise, she could be charged with "recklessly caus[ing] alarm to another person by failing to conceal the firearm, even briefly." Haw. Rev. Stat. § 134–9.7. Once she has removed the handgun from her person, she cannot leave it in her car without locking it in what amounts to a safe. See § 134–9.3.

Instead of going through all this, she may choose to remain armed when she enters the supermarket and promptly search for someone who is authorized to provide the consent that the law demands. This will prolong the violation of the terms of the Hawaii law, and finding someone who can provide consent may not be easy. For example, it is most unlikely that the supermarket employee who is gathering up

Page Proof Pending Publication

shopping carts in the parking lot or the employee who is restocking shelves will possess that authority. During all the time this search goes on, our hypothetical young woman will be violating the terms of the statute, and if that is brought to the attention of the police (say, by a store employee or customer who hears her ask for permission to enter), she may be charged with a criminal offense or lose her license. § 134–9.7. And in the end, she may be unable to shop because she cannot find anyone who has been authorized by management to consent.

When our hypothetical young woman visits the restaurant at lunch, her situation may be even more difficult. Unless her place of employment has a gun locker where she can store her gun, she may be unable to leave it behind when she leaves the building. See § 134–10.5. And if she disarms before leaving work, she will be vulnerable for that period of time. Even this short period of vulnerability can be deadly: Ms. Caetano was approached by her abusive boyfriend right after leaving work. See *Caetano*, 577 U. S., at 413 (ALITO, J., concurring in judgment).

Page Proof Pending Publication

If our hypothetical young woman remains armed during the lunch break, she will violate the terms of the law if she sets foot inside any establishment without a "Guns Welcome" sign, even if she immediately seeks someone who can provide authorization to stay. And as was the case with the supermarket, finding such a person may not be easy. Thus, by the end of an ordinary day, our hypothetical young woman could be a criminal at least six times over. In short, Hawaii's law severely hampers the ability of a law-abiding citizen to exercise the right *Bruen* recognized.

Hawaii nonetheless argues that petitioners' challenge fails at the first step of *Bruen*'s two-step framework because "the right to bear arms did not encompass the right to armed entry onto private property without the owner's consent." Brief for Respondent 9. The State then launches into a lengthy discussion of historical materials and precedents that, it contends, supports this argument. *Id.*, at 9–27.

We will discuss all these authorities, but they are out of place at *Bruen*'s first step. At that stage, as we have explained, the question is simply whether a challenged law falls within the Second Amendment's "plain text." 597 U. S., at 24. We therefore move on to the second step.

B

At this second step, the inquiry mandated by *Heller* and *Bruen* turns to an exploration of the historical understanding of the scope of the right the Constitution codified. Hawaii's first argument on this score is based on "Hawai'i's particular customs and laws." Brief for Respondent 24. The State starts with the undisputed principle that the owner of private property is generally free to exclude anyone from entering without consent. See *Florida* v. *Jardines*, 569 U. S. 1, 7–8 (2013). It acknowledges that an owner's consent need not always be express and that there are circumstances in which consent may be inferred. See *id.*, at 8. But the State contends that, whatever the situation in other parts of the country, *in Hawaii*, opening private property to the public does not implicitly include any armed individuals among those who may enter.[10]

Page Proof Pending Publication

In support of this argument, the State recounts its long history of antipathy to the private possession of firearms. It tells us that one of the very first written laws of the Kingdom of Hawaii, issued in 1833 by King Kamehameha III, prohibited the possession of all deadly weapons.[11] Later laws adopted before and after Hawaii became part of the United States continued to heavily restrict the possession and car-

[10] The State curiously suggests that the concept of private property that is open to the public is too fuzzy for use in ascertaining implied consent. Brief for Respondent 20–21. But Hawaiian law uses that familiar concept in a variety of contexts. See, *e. g.*, Haw. Rev. Stat. §§ 708–813, 708–814 (2025) (definition of criminal trespass); § 489–2 (2019) (public accommodations law).

[11] See Translation of the Constitution and Laws of the Hawaiian Islands, Established in the Reign of Kamehameha III, in Hawaiian Laws 1841–1842, ch. 42, p. 98 (1842).

riage of firearms. See, *e. g.*, Act of May 25, 1852, § 1, 1852 Haw. Sess. Laws 19 (limiting the right to carry any deadly weapon in public); Haw. Rev. Laws, ch. 209, § 3089 (1905), as amended by Act of Mar. 19, 1913, § 1, 1913 Haw. Sess. Laws 25. And prior to *Bruen*, Hawaii permitted public carry only in "exceptional" cases "when an applicant show[ed] reason to fear injury to the applicant's person or property." Haw. Rev. Stat. § 134–9(a) (2022). Then, in the wake of *Bruen*, Hawaii passed the statute at issue in this case, and the State contends that this law continues a Hawaiian tradition and shows that Hawaiians disfavor the carrying of guns in their midst. Accordingly, the State maintains, its new default rule merely expresses the circumstances under which implied consent may be reasonably inferred in Hawaii.

This argument is little different from the central argument offered by the city of Chicago in *McDonald*, and Hawaii's version fares no better. As the plurality explained in *McDonald*, the Second Amendment has the same meaning in all parts of the United States. 561 U. S., at 784–785. It cannot give way to "the spirit of Aloha" in Hawaii, contra, *State* v. *Wilson*, 154 Haw. 8, 27, 543 P. 3d 440, 459 (2024), any more than it can yield to the spirit of the Big Apple (*Bruen*) or the Windy City (*McDonald*). It applies in the same way to our 50th State (where about 8% of adults possess guns) and our 49th State (where the figure is roughly 59%).[12] Merely local attitudes can neither shrink nor inflate the meaning of fundamental Bill of Rights guarantees that apply to the States through the Fourteenth Amendment.[13]

Page Proof Pending Publication

[12] RAND, Gun Ownership in America, https://www.rand.org/research/gun-policy/gun-ownership.html (archived at https://perma.cc/WR9W-YCSN).

[13] The principal dissent's main argument is that "[t]his case is about property rights, not gun rights." *Post*, at 231 (opinion of JACKSON, J.). Because a State is generally free to alter traditional property-law principles as it chooses, the dissent contends that Hawaii's alteration of the traditional rule on access to private property open to the public does not infringe Second Amendment rights. This argument fails because States

When we assess whether a challenged law is consistent with the right the Second Amendment codified, we seek the general understanding of that codified right at the relevant point in time. An outlier legal rule adopted in a few locales is not enough. See *supra*, at 196; *Bruen*, 597 U. S., at 39 ("'[T]he language of the Constitution cannot be interpreted safely except by reference to the common law and to British institutions as they were when the instrument was framed and adopted'" (emphasis deleted)). And as we have explained, "overwhelming evidence" shows an "enduring American tradition permitting public carry." *Id.*, at 67. Hawaii's prohibitions on public carry represent a distinct outlier.[14]

C

1

With this preliminary question out of the way, we turn to Hawaii's main argument: that analogous colonial and early state laws support the constitutionality of the State's new law. These old laws, however, are vastly different from

Page Proof Pending Publication

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may not adopt property-law rules that violate constitutional rights. For example, a State may not adopt property-law rules that violate the freedom of speech. See, *e.g.*, *Reed* v. *Town of Gilbert*, 576 U. S. 155, 159 (2015) (ordinance regulating signs on private property); *City of Ladue* v. *Gilleo*, 512 U. S. 43, 45 (1994) (similar). Nor may a State adopt zoning rules that violate the equal protection of the laws. See, *e. g.*, *Buchanan* v. *Warley*, 245 U. S. 60 (1917). Likewise, a State may not "'sidestep the Takings Clause'" by enacting a law purporting to extinguish a property interest. *Tyler* v. *Hennepin County*, 598 U. S. 631, 638–639 (2023). The right protected by the Second Amendment is entitled to no less protection than other constitutional rights.

[14] The State also argues that *Florida* v. *Jardines*, 569 U. S. 1 (2013), and *McKee* v. *Gratz*, 260 U. S. 127 (1922), support its argument that the scope of the constitutional right to keep and bear arms may vary from place to place, but that is incorrect. *Jardines*, a Fourth Amendment case, had nothing to do with variations in property norms across different localities. And *McKee* addressed common-law trespass, not any constitutional question.

Hawaii's new default rule. They consist almost entirely of laws that prohibited unauthorized hunting of deer or small game on someone else's private property.[15]

The State's earliest analogue is a 1721 Pennsylvania law entitled "An Act to Prevent the Killing of Deer Out of Season, and Against Carrying of Guns and Hunting By Persons Not Qualified." This statute made it unlawful to "carry any gun or hunt on the improved or inclosed lands of any plantation, other than his own," without securing "license or permission from the owner of such lands or plantation." 1721 Pa. Laws, ch. 246, § 3, in 3 The Statutes at Large of Pennsylvania From 1682 to 1801, pp. 254–255 (J. Mitchell & H. Flanders eds. 1896). The law's stated purpose was to prevent "divers[e] abuses, damages and inconveniences" that "ha[d] ar[i]se[n] by persons carrying guns, and presuming to hunt on other people's lands." § 2, at 255. As the Third Circuit observed, that law "appears to be primarily focused on preventing Pennsylvanians from hunting on their neighbors' land, not on restricting the right to publicly carry a gun." *Lara* v. *Commissioner Pa. State Police*, 125 F. 4th 428, 443 (2025).

Page Proof Pending Publication

A 1722 New Jersey statute contains nearly identical language. See An Act to Prevent the Killing of Deer out of

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[15] Some of these laws applied only to "enclosed" land, and petitioners and some of their *amici* argue that such property was not open to the public. See Brief for Petitioners 31; Brief for United States as *Amicus Curiae* 30. On the other hand, the State and some of its *amici* contend that the term "enclosed land" was understood at the time to include some property that was generally open to the public. See Brief for Respondent 31; M. Brady, Property v. Guns: The Level-of-Generality Problem in *Wolford*, 78 Stan. L. Rev. Online 156, 173–175 (2026). For the sake of argument, we will assume that the latter interpretation is correct and that the State's analogues were well-known and accepted. Even so, they are far too different from Hawaii's default rule to permit us to infer that the default rule is consistent with the codified Second Amendment right. See *infra*, this page and 209–210.

Season, and against Carrying of Guns and Hunting by Persons not Qualified, 1722 N. J. Laws pp. 100–101 (no person shall "carry any [g]un, or [h]unt on the improved or inclosed [l]ands in any [p]lantatio[n] . . . other than his own"). And a 1728 Maryland statute and a 1763 New York law fall into the same category. The Maryland law, titled "An Act to Encourage the Destroying of Wolves, Crows, and Squirrels," made it unlawful to "come to hunt with Guns or Dogs, within any Inclosed Grounds, Islands, Peninsula's, or Necks fenced across from Water to Water, without Leave or Licence from the Proprietors thereof, first had and obtained." 1728 Md. Laws p. 13. And the New York law, titled "An Act to Prevent Hunting with Fire-Arms in the City of New-York, and the Liberties Thereof," made it unlawful to "carry, shoot, or discharge any Musket, Fowling-Piece, or other Fire-Arm whatsoever, into, upon, or through any Orchard, Garden, Corn-Field, or other inclosed Land whatsoever." 1763 N. Y. Laws ch. 1233, § 1. All these laws targeted unauthorized hunting and focused on land where game could be found.

Page Proof Pending Publication

A 1771 New Jersey law followed this tradition. Titled "An act for the preservation of deer, and other game, and to prevent trespassing with guns," this law provided that a person could not "carry any gun on any lands not his own, and for which the owner pays taxes, or is in his lawful possession, unless he hath license or permission in writing from the owner or owners, or legal possessor." 1771 N. J. Laws pp. 25–26.[16]

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[16] And because New Jersey taxed only "improved land" at the time, the prohibition on carrying guns on taxed land was in effect a prohibition against armed trespass on "improved land" closed to the public. B. Sawers, Keeping Up With the *Joneses*, 111 Mich. L. Rev. First Impressions 21, 25–26 (2013). Indeed, the very text of the statute targets "trespass-[ers]," so its regulation of improved land naturally referred to private property closed to the public. 1771 N. J. Laws § 1, pp. 26–27. This inference becomes even clearer from the fact that a separate provision of the statute targeted hunting on "unimproved" lands not closed to the public. § 6.

In sum, the State's analogues principally targeted unauthorized hunting. Their coverage differed sharply from that of the Hawaii law now before us. They applied to land where game could be found, not retail establishments that residents of cities and suburbs frequent as part of their daily routines. They had little if any impact on the Second Amendment's central objective: protecting the fundamental right to self-defense. And their obvious aim was to prevent the distinctive harms and risks associated with unauthorized hunting. That conduct often entailed the theft of private property: The poacher took game that the property owner might have otherwise harvested. It involved the firing of guns, which created a risk of inadvertently inflicting death or serious injury on the owner of the property, others who were authorized to use the property, and livestock. At a minimum, the sound of the gunshots could surprise, alarm, or disturb the tranquility of others on the property.

The conduct restricted by the Hawaii law has none of these effects. Others on the premises will not even notice a person peacefully carrying a concealed weapon in the manner demanded by Hawaiian law.

Page Proof Pending Publication

To test whether these analogues are "relevantly similar" to the challenged Hawaii law, we may ask the question set out earlier: "Because it was accepted that prohibiting unauthorized hunting on private land was consistent with the Second Amendment right, can we infer that it is also consistent with that right to ban a person who is lawfully carrying a concealed handgun for self-defense from entering a gas station, coffee shop, grocery store, or other private property open to the public without express and unambiguous consent?" The question answers itself. The gap between the State's anti-poaching analogues and its new rule is just too wide.

2

The State's two remaining analogues are even weaker. The first is an 1893 Oregon law that prohibited anyone "other

than an officer on lawful business, [from] being armed . . . or trespass[ing] upon any enclosed premises or lands without the consent of the owner." 1893 Ore. Laws p. 79. On its face, it is not clear that this statute is relevant to the issue before us. For one thing, even if commercial establishments that are open to the public were considered "enclosed" at the time of the adoption of the Bill of Rights, see n. 13, *supra*, no Oregon authority shows that the Oregon statute used the term to refer to such establishments. To the contrary, Oregon courts have interpreted the phrase "enclosed land" as outdoor land surrounded by a "visible or distinctive line that demonstrates its separation from contiguous properties," such that a hunter would know to seek permission before hunting. See *State* v. *Kimble*, 236 Ore. App. 613, 619–620, 273 P. 3d 871, 874, (2010). It is thus unlikely that the 1893 Oregon law used the term "enclosed" to refer to businesses open to the public rather than to private lands on which poaching was a problem. Moreover, the statute does not demand that consent be express. But even if this provision is read as Hawaii would have it, a lone statute adopted nearly a century after the adoption of the Second Amendment and well after the adoption of the Fourteenth Amendment sheds little if any light on the meaning of the Second Amendment right.

Page Proof Pending Publication

Finally, we come to the State's most remarkable analogue, an 1865 Louisiana statute that made it unlawful "for any person or persons to carry fire-arms on the premises or plantations of any citizen, without the consent of the owner or proprietor, other than in lawful discharge of a civil or military order." 1865 La. Acts No. 10, § 1, p. 14. Regardless of this provision's pedigree, it has no probative value for present purposes. As we have said, in considering the probative value of a historical analogue, we must consider whether it was widespread, well-known, and widely accepted. See *Bruen*, 597 U. S., at 35. Because this statute was neither widespread nor widely accepted, it carries no weight.

We could stop there, but there is another reason for rejecting Hawaii's reliance on this statute. It was adopted by the Louisiana Legislature between the end of the Civil War and the beginning of Reconstruction. When the war ended, the legislatures in defeated Confederate States quickly enacted so-called Black Codes that aimed to perpetuate the subjugation of blacks.[17] The statute Hawaii cites was part of Louisiana's Black Code, and it provided a tool for disarming blacks and thus leaving them defenseless against attacks. See 125 F. 4th, at 1239 (VanDyke, J., dissenting from denial of reh'g en banc).

As we laid out in *McDonald*, the right to keep and bear arms was crucially important for vulnerable blacks during this period. See 561 U. S., at 757, 771, 776–779; *id.*, at 843–846 (opinion of THOMAS, J.). And this was well-understood by the Republicans in Congress who were responsible for drafting, approving, and securing the ratification of the Fourteenth Amendment. The Republican Party Platforms of 1856 and 1860 called for protection of the right to keep and bear arms for self-defense. Unless we put history entirely out of our minds, Hawaii's claim that this tainted artifact illuminates the original understanding of the right to keep and bear arms cannot be taken seriously.

Page Proof Pending Publication

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The Hawaii law at issue here violates the constitutional right to keep and bear arms. Therefore, the judgment of the Court of Appeals for the Ninth Circuit is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

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[17] See, *e. g.*, E. Foner, The Second Founding: How the Civil War and Reconstruction Remade the Constitution 47–49 (2019).

JUSTICE BARRETT, with whom JUSTICE THOMAS and JUSTICE GORSUCH join as to Part II–B, concurring.

I join the Court's opinion in full. I write to add a few points about why Hawaii's law triggers—and fails—Second Amendment scrutiny.

I

Hawaii and the principal dissent insist that this is a case about property law, not the Second Amendment. The argument goes like this: No one has the right to enter private property—let alone to bring firearms onto it—without the owner's consent. Brief for Respondent 14–15. Whether consent can be implied or must be express depends on local custom and property rules, which States have always had authority to modify. *Id.*, at 15–16. By requiring express consent, Hawaii has simply modified a default rule of property law. And because the "'*pre-existing* [Second Amendment] right'" did not require any particular default rule, Hawaii's law does not even implicate the Second Amendment. *Id.*, at 13 (quoting *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 20 (2022)); see *post*, at 231–238 (JACKSON, J., dissenting). No further analysis is necessary.

Case Proof Pending Publication

This argument misunderstands the role of historical evidence in a Second Amendment challenge. *Bruen* establishes a two-part test for assessing whether a modern law is consistent with the Second Amendment. See 597 U. S., at 24. Each step requires a court to look at different evidence—plain text at the first, tradition at the second—but together, the two steps illuminate the original scope of the right. See *ibid.* While history is relevant to both steps, it plays a different "rol[e]" at each one. *United States* v. *Rahimi*, 602 U. S. 680, 738 (2024) (BARRETT, J., concurring). We look to history that "elucidates how contemporaries understood the text—for example, the meaning of the phrase 'bear Arms'"—at *Bruen*'s first step. 602 U. S., at 738–739. We